

Virendra Kumar @ Birendra Kumar v. State of U.P.

Allahabad High Court · Division Bench · 4 February 2020 · Writ-C No. 2212 of 2020 · **Writ disposed; Executive Engineer directed to decide pending Clause 6.5 billing objections within one month; coercive action on the 17.7.2019 demand stayed for that period.**

HEADNOTE

Consumers alleging steeply inflated bills and unreconsidered Clause 6.5 objections pending before the Executive Engineer: writ disposed with a one-month direction to consider and decide those objections in accordance with law, and a matching stay of coercive action on the demand notice dated 17.7.2019. The Court did not examine the correctness of the bills.

FACTUAL SUMMARY

The petitioners claimed to be electricity consumers holding valid connections. They alleged that the bills furnished to them were steeply inflated, that they had filed objections, and that recovery was being pressed without those objections being considered, pursuant to a demand notice dated 17 July 2019. They submitted that under Clause 6.5 of the Electricity Supply Code, 2005 the Executive Engineer was the appropriate authority and that their objections remained pending before him. The State and the licensee (respondent no. 4) appeared.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending inflated-bill objections before Executive Engineer

HOLDING

Where consumers allege steeply inflated electricity bills and have pending Clause 6.5 objections before the Executive Engineer, the writ court will not decide the billing dispute on merits but will dispose of the petition by directing the concerned authority to consider and decide the objections in accordance with law within a stipulated time, staying coercive recovery on the demand notice for that period. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy Writ on alleged inflated bills disposed by relegating the petitioners to their pending Clause 6.5 objections rather than examining the demand on merits. ¶ 1

billing-objection-to-executive-engineer-under-6.5 Court accepted that the Executive Engineer is the appropriate Clause 6.5 authority for the pending billing objections and directed that authority to decide them within one month. ¶ 1

6.5-representation-as-appropriate-remedy Petitioners' representation under Clause 6.5, already pending, treated as the proper forum for the inflated-bill dispute. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILLS WERE IN FACT STEEPLY INFLATED OR THE 17.7.2019 DEMAND WAS OTHERWISE INCORRECT

Merits of the billing dispute left to the Clause 6.5 authority. ¶ 1